

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 90-075

WASTE DISCHARGE REQUIREMENTS
FOR
SOMMERVILLE I-5 PARTNERSHIP
INTERSTATE 5 AND JAYNE AVENUE FACILITY
FRESNO COUNTY

The California Regional Water Quality Control Board, Central Valley Region (hereafter Board) finds that:

1. Henry G. Sommersville, Ron Gray, and Wico (general partners), dba Sommersville I-5 Partnership, a California General Partnership, (hereafter jointly referred to as Discharger) submitted a Report of Waste Discharge and technical report dated 27 April 1989. The Discharger proposes to discharge domestic wastes from a commercial center on the south side of Jayne Avenue at Glenn Avenue, 1/4 mile west of Interstate 5 in Section 6, T21S, R17E, MDB&M, as shown on Attachment A.
2. The Board, on 24 January 1986, adopted Order No. 86-033 which prescribes requirements for the discharge of 55,000 gallons per day of treated domestic waste from two aerated lagoons to an evaporation/percolation pond. This system was never built, and the Discharger has changed plans for the treatment and disposal of domestic waste from the commercial center.
3. Waste discharge requirements established by Order No. 86-033 do not reflect the presently proposed facility and are neither adequate nor consistent with plans and policies of the Board.
4. The commercial center development will be in two phases. Phase one will consist of a recreational vehicle park, a restaurant, two service stations, and a mini-mart. Phase two will consist of two motels and two additional restaurants.
5. The first phase will be served by a comminutor and aerated lagoon operated in a tapered aerobic/mix mode. The lagoon will have three 2-hp aerators. Average maximum design flow is 24,800 gallons per day (gpd) with peak flows up to four times that. Treated wastewater will be discharged to two 1/4-acre evaporation/percolation ponds with water depths of 12 feet. These ponds will accommodate maximum design flows and design seasonal precipitation. For phase two, one of the evaporation/percolation ponds will be converted to an aerated lagoon. Flows for the full development will average 74,300 gpd.
6. Fresno County requires that the Discharger provide wastewater treatment operators certified in accordance with regulations adopted by the State Water Resources Control Board.

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7. The Board, on 21 August 1975, adopted the *Water Quality Control Plan* for the Tulare Lake Basin (5D). These requirements are consistent with that Plan.
8. State Water Resources Control Board Resolution No. 77-1 and the Water Reclamation Policy of the California Water Code (Chapter 7, Division 7) encourage use of reclaimed water where appropriate. The *Water Quality Control Plan for the Tulare Lake Basin* (5D) further requires a Discharger consider reclamation and, if not feasible, "...include the reason why the effluent is not planned to be used beneficially on irrigated land when the intended method of disposal is to be evaporation or percolation."
9. Domestic water for this development is provided by an on-site well. Westlands Water District provides backup supply.
10. The soils on the site consist of silty clay down to about 4 feet overlaying sands and silty and clayey sands. Percolation rates vary from an average of 13 minutes per inch in the first 15 inches to less than 1 minute per inch below ten feet.
11. Depth to first ground water is about 450 feet below ground surface. Local quality is marginal, with iron and manganese in excess of drinking water standards, and sulfates in excess of recommended levels. Electrical conductivity is 1000 umhos/cm. Beneficial uses of the ground water underlying this area are domestic and agricultural supply.
12. Drainage from this site is to Los Gatos Creek, about one mile north of the site.
13. The beneficial uses of Los Gatos Creek are agricultural and industrial supply, contact and non-contact recreation, warm water habitat, wildlife habitat, and groundwater recharge.
14. Fresno County has certified a negative declaration in accordance with the California Environmental Quality Act (Public Resources Code, Section 21000, et seq.), and the State CEQA Guidelines.
15. The project, as approved by Fresno County, will not have a significant effect on water quality.
16. The Board notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge, and provided them an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
17. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

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IT IS HEREBY ORDERED that Order No. 86-033 be rescinded and the Sommersville I-5 Partnership, in order to meet the provisions contained in Division 7 of the California Water Code and Regulations adopted thereunder, shall comply with the following:

A. Discharge Prohibitions:

1. The discharge of wastes to surface waters or surface water drainage courses is prohibited.
2. By-pass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of toxic or hazardous waste, or any waste other than treated domestic waste as described herein, is prohibited.

B. Discharge Specifications:

1. The monthly average daily discharge flow shall not exceed 74,300 gallons.
2. The discharge shall not contain constituents in excess of the following:

<u>Constituent</u>	<u>Unit</u>	<u>Monthly Mean</u>	<u>Daily Maximum</u>
BOD ₅ ^{1/}	mg/l	40	80

^{1/} Five-day, 20° Celsius biochemical oxygen demand

3. The dissolved oxygen content in the upper zone (1.0 feet) of wastewater in the aerated lagoon and the evaporation/percolation ponds shall not be less than 1.0 mg/l.
4. The aerated lagoon and evaporation/percolation ponds shall not have a pH less than 6.5 or greater than 9.0.
5. The maximum specific electrical conductance (EC) of the discharge shall not exceed the average EC of the water supply plus 500 umhos/cm.

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6. Collected screenings, sludges, and other solids removed from the liquid wastes shall be disposed of in a manner that is consistent with Subchapter 15 of Chapter 3 of Title 23 of the California Code of Regulations, and is approved by the Executive Officer.
7. Public access to the treatment and disposal facilities shall be precluded through a satisfactory combination of signs (english and spanish) and/or fences, or some equivalent alternative.
8. The treatment and disposal facilities shall be constructed and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
9. All ponds shall have sufficient freeboard at all times to accommodate allowable wastewater flow and design seasonal precipitation. Design seasonal precipitation shall be based on total annual precipitation using a return period of 100 years, distributed monthly in accordance with historical rainfall patterns. Freeboard shall never be less than 1.5 feet (measured vertically).
10. The aerated lagoon and evaporation/percolation ponds shall be managed to prevent breeding of mosquitos. In particular:
 - a. An erosion control program shall assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized through control of water depth, harvesting, or herbicides.
 - c. Dead algae, vegetation, scum, and debris shall not accumulate on the water surface.
11. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the wastewater treatment and disposal areas.

C. Provisions:

1. The Discharger shall submit technical reports as directed by the Executive Officer.
2. The Discharger shall comply with the attached Monitoring and Reporting Program No. 90-075 , and any revisions thereto as ordered by the Executive Officer.

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3. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 February 1990, which are, by reference, made part of this Order.
4. The discharge shall not cause degradation of any water supply.
5. Within six months of the effective date of this Order, the Discharger shall submit, to the satisfaction of the Executive Officer, a technical report describing plans for implementing a reclamation program. The reclamation program shall comply with the Water Reclamation Policy, Section 13512, Article 2, Chapter 7, of the California Water Code; State Water Resources Control Board Resolution No. 77-1; and the Reclamation Criteria, Chapter 3, Division 4, Title 22 of the California Code of Regulations. This report shall identify on a map the location(s) of proposed reclamation site(s), the vegetation grown thereon, and, if available, the Order Number(s) of the Wastewater Reclamation Requirements governing the site(s). If not feasible, the Discharger shall include in the technical report a thorough explanation why reclamation will not be implemented, including evidence that all reclamation alternatives were explored.
6. The terms of this Order do not establish a right for continued discharge to evaporation/percolation ponds.
 - a. If the Discharger proposes not to implement reclamation and the justification is not acceptable to the Executive Officer, this Order shall be rescheduled for hearing and possible modification.
 - b. If the Discharger proposes reclamation it shall also submit a time schedule for implementation acceptable to the Executive Officer and a report of waste discharge for appropriate modification of this order.
7. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter within thirty days, a copy of which shall be forwarded simultaneously to this office.
8. The Discharger shall provide a letter report within 60 days of the effective date of this Order identifying the names, titles and certificate grades of persons supervising and operating the facility, and identifying whom to contact, and means of contact, in case of an emergency.
9. The Discharger shall submit a copy of the operation and maintenance (O&M) manual for the facility by 23 May 1990. The O&M manual shall

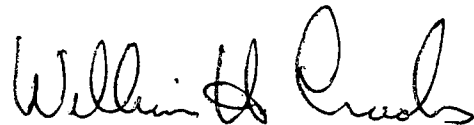
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include a periodic pond maintenance program in order to maintain percolation rates.

10. The Discharger shall submit technical reports verifying compliance with Standard Provisions A.9 and B.2 by 23 May 1990. The content of these reports shall be incorporated into the O&M manual as appropriate.
11. A copy of this Order shall be kept at the discharge facility for reference by operating personnel. Key operating personnel shall be familiar with its contents.
12. The Discharger must comply with all conditions of this Order. Violations may result in enforcement action, including Regional Board or court orders requiring corrective action or imposing civil monetary liability, or in modification or revocation of this Order.
13. In addition to modification of this Order under circumstances described in Standard Provision A.3, this Order may be modified if sludge use or disposal practices change, if applicable management practices or numerical limitations for pollutants in these wastes necessitate it, if there is endangerment to human health or the environment, or if the Board elects to review and revise the Order on its own motion.

I, WILLIAM H. CROOKS, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 23 March 1990.



WILLIAM H. CROOKS, Executive Officer

SWG:cjs:3/23/90

Attachments

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
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MONITORING AND REPORTING PROGRAM NO. 90-075
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EFFLUENT MONITORING

The following shall constitute the effluent monitoring program: ^{1/}

<u>Constituent</u>	<u>Unit</u>	<u>Type of Sample</u>	<u>Frequency</u> ^{2/}
Flow	MGD	Metered	Daily
Dissolved Oxygen	mg/l	Grab	3/week
pH	units	Grab	3/week
BOD ₅	mg/l	Grab	2/month
Specific Electrical Conductance (EC) @ 25 C	umhos/cm	Grab	Quarterly

^{1/} Dissolved oxygen samples shall be collected from the aerated pond and each pond from a depth of 1.0 feet at the point furthest from the inlet. Other samples shall be collected from the outlet of the aerated lagoon. Samples shall be collected between 0800 and 0900 hours.

^{2/} If results of monitoring a pollutant appear to violate effluent limitations, but monitoring frequency is not sufficient to validate the violation (e.g., the monthly mean for BOD), or indicate a violation and potential upset of the treatment process (e.g., less than minimum D.O.), the frequency of sampling shall be increased to confirm the magnitude and duration of violation, if any, and aid in identification and resolution of the problem.

POND MONITORING

- a. Discharger shall inspect the condition of the aerated lagoon and ponds once per week and write visual observations in a bound log book. Notations shall include observations of whether weeds are developing in the water or along the bank, and their location; whether dead algae, vegetation, scum, or debris are accumulating on the pond surface and their location; whether burrowing animals or insects are present; and the color of the pond (e.g., dark sparkling green, dull green, yellow, grey, tan, brown, etc.). A copy of the entries made in the log during each month shall be submitted along with the monitoring report the following month. Where the O&M manual

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indicates remedial action is necessary, the Discharger shall briefly explain in the transmittal what action has been taken or is scheduled to be taken including maintenance to pond bottoms.

- b. The freeboard shall be monitored on all evaporation/percolation ponds. The following shall constitute the freeboard monitoring program:

<u>Constituent</u>	<u>Unit</u>	<u>Type of Sample</u>	<u>Frequency</u>
Freeboard	feet, tenths	Observation	Weekly

SOURCE WATER MONITORING

A representative sample shall be collected from the source which supplies water to the facility according to the specified frequency.

<u>Constituent</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Frequency</u>
EC ^{1/}	umhos/cm	Grab	Monthly ^{2/}

^{1/} If the source water is from more than one source, the EC shall be reported as the weighted average and include copies of supporting calculations.

^{2/} Frequency to decrease to quarterly after one year if base data indicates quality is relatively stable.

REPORTING

Monitoring results shall be submitted to the Regional Board by the 15th day of the month following sample collection.

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in a manner that illustrates clearly whether the discharge complies with waste discharge requirements.

If the Discharger monitors any pollutant at the locations designated herein more frequently than is required by this Order, or monitors any pollutant not specified in this Order, the results of such monitoring shall be included on the Discharge Monitoring Report Form.

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By 31 January of each year, the Discharger shall submit a written report to the Executive Officer containing the following:

- a. The names and telephone numbers of persons to contact regarding the facility for emergency and routine situations,
- b. A statement whether the current operation and maintenance manual reflects the wastewater treatment system as currently constructed and operated, and the date when this document was last reviewed for adequacy, and
- c. The total quantity of sludge disposed of and ultimate disposal site(s).

The Discharger may also be requested to submit an annual report to the Board with both tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the compliance record. If violations have occurred, the report shall also discuss the corrective actions taken and planned to bring the discharge into full compliance with waste discharge requirements.

All reports submitted in response to this Order shall comply with the signatory requirements of Standard Provision B.3.

The Discharger shall implement the above monitoring program on the effective date of this Order.

Ordered by


WILLIAM H. CROOKS, Executive Officer

23 March 1990
(date)

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INFORMATION SHEET

SOMMERVILLE I-5 PARTNERSHIP INTERSTATE 5 AND JAYNE AVENUE FACILITY FRESNO COUNTY

The Sommersville I-5 Partnership is building a commercial center at the intersection of Jayne Avenue and Glenn Avenue, about one quarter mile west of Interstate 5 in the NE 1/4 of Section 6, T21S, R17E, MDB&M. Wastes will be generated from two motels, three restaurants, two service stations, a mini mart, and a recreational vehicle park.

The development will be in two phases. Phase one will consist of the recreational vehicle park, restaurant, service stations, and a mini mart. Estimated average daily flow for phase one is 24,800 gallons per day (gpd). Phase two will consist of the two motels and two restaurants. Estimated average daily flow at the end of phase two is 74,300 gpd.

In the first phase, the treatment facilities will consist of an aerated lagoon operating in a tapered aeration/mix mode and two evaporation/percolation ponds for disposal. For phase two, a disposal pond will be converted to an aerated lagoon, leaving one disposal pond to provide disposal exclusively. A water balance performed on the facility demonstrated the ponds' capacity to accommodate wastewater flows and design seasonal precipitation based on a 100-year wet season.

This Order requires the Discharger to consider reclamation of the effluent from this development in accordance with the Basin Plan. The Discharger must submit a technical report providing plans and a time schedule for implementing reclamation at this site or justification why reclamation will not be implemented.

The soils on the site consist of about 4 feet of silty clay over sands and silty and clayey sands. Silt and clay content decreases with depth. Percolation rates vary from an average of 13 minutes per inch in the first 15 inches to less than 1 minute per inch below ten feet.

Effluent limits for conventional parameters are imposed only on BOD. Variable influent flow, variable use of disposal ponds, and acceptable organic loading rates for polishing ponds provide the basis for the BOD limit on the aerated lagoon. The limits are compatible with limit imposed on similar facilities. The proposed Order contains a limitation for minimum dissolved oxygen.

Depth to confined ground water, as measured in the spring of 1981, is approximately 450 feet. Ground water is of poor quality, with iron and manganese in excess of drinking water standards, and sulfates in excess of recommended levels. Electrical conductance (EC) is around 1000 umhos/cm. Beneficial uses of the groundwater are domestic and agricultural supply.

Domestic water is supplied by private well. Westlands Water District provides a backup source of water.

INFORMATION SHEET - Continued

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Average precipitation and evaporation rates for the area are 7 and 85 inches per year, respectively.

Fresno County adopted a negative declaration for this project in accordance with the California Environmental Quality Act (Public Resources Code Section 21000, et seq.), and the State CEQA Guidelines. The Board has reviewed the negative declaration and concurs there are no significant impacts on water quality.

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